

Comments

Section 97 absolves a railway administration from responsibility in the absence of negligence or misconduct on its part for any loss, destruction, etc. of the consignment carried at owners risk rate.

Question of impleading the parties – procedure of – it is well settled law that the question of impleading the parties can be entertained only before the original Court and not before the Appellate Court.

98. Goods in defective condition or defectively packed. – (1) Notwithstanding anything contained in the foregoing provisions of this chapter, when any goods entrusted to a railway administration for carriage –

- (a) are in a defective condition as a consequence of which they are liable to damage, deterioration, leakage or wastage ; or
- (b) are either defectively packed or not packed in such manner as may be prescribed and as a result of such defective or improper packing are liable to damage, deterioration, leakage or wastage,

and the fact or such condition or defective or improper packing has been recorded by the consignor or his agent in the forwarding note, the railway administration shall not be responsible for any damage, deterioration, leakage or wastage or for the condition in which such goods are available for delivery at destination :

Proved that the railway administration shall be responsible for any such damage, deterioration, leakage or wastage or for the condition in which such goods are available for delivery at destination if negligence or misconduct on the part of the railway administration or of any of its servants is proved.

(2) When any goods entrusted to a railway administration for carriage are found on arrival at the destination station to have been damaged or to have suffered deterioration, leakage or wastage , the railway administration shall not be responsible for the damage, deterioration, leakage or wastage of the goods on proof by railway administration –

- (a) that the goods were, at the time of entrustment to the railway administration, in a defective condition, or were at that time either defectively packed or not packed in such manner as may be prescribed and as a result of which were liable to damage, deterioration, leakage or wastage; and
- (b) that such defective condition or defective or improper packing was not brought to the notice of the railway administration or any of its servants

at the time of entrustment of the goods to the railway administration for carriage by railways;

provided that the railway administration shall be responsible for any such damage, deterioration, leakage or wastage if negligence or misconduct on the part of the railway administration or of any of its servants is proved.

Comments

Section 98 provided for the responsibility of railways in cases of consignment which are in defective condition or are defectively packed.

Proviso. – In *Abdul Jabar Butt v. Sate of Jammu and Kashmir*, it was held that a proviso must be considered with relation to the principle matter to which it stands as a proviso.

99. Responsibility of a railway administration after termination of transit. –

1. A railway administration shall be responsible as a bailee under secs. 151, 152, and 161 of the Indian Contract Act, 1872 (9 if 1872), for the loss, destruction, damage, deterioration or non-delivery of any consignment up to a period of seven days after the termination of transit;

Provided that where the consignment is at owner's risk rate, the railway administration shall not be responsible as a bailee for such loss, destruction, damage, deterioration or non-delivery except on proof of negligence or misconduct on the part of the railway administration or of any of its servants .

2) The railway administration shall not be responsible ;in any case for the loss, destruction, damage deterioration or non-delivery of any consignment arising after the expiry of a period of seven days after the termination of transit.

3) Notwithstanding anything contained in the foregoing provisions of this section, a railway administration shall not be responsible for the loss, destruction, damage, deterioration or non-delivery of perishable goods, animals explosives and such dangerous or other goods as may be prescribed, after the termination of transit.

4) Nothing in the foregoing provisions of this section shall affect the liability of any person to pay any demurrage or wharfage, as the case may be, for so long as the consignment is not unloaded from the railway wagons or removed from the railway premises.

100. Responsibility as carrier or luggage.